

That the reason why the Court refused granting a third trial in the case of *Metcalf and Hall* was because the plaintiff had proved his debt under a commission of bankrupt, which had issued against the drawees of the bill between the time of the verdict and the motion for a new trial.

Rule absolute (a).

[172] *MACBEATH against HALDIMAND*. Wednesday, May 10th, 1786. An officer appointed by Government, treating as an agent for the public, is not liable to be sued upon contracts made by him in that capacity.

[Referred to, *Thomas v. Reg.*, 1874, L. R. 10 Q. B. 43; *Grant v. Secretary of State for India*, 1877, 2 C. P. D. 461; *Palmer v. Hutchinson*, 1881, 6 App. Cas. 626; *Dunn v. Macdonald* [1897], 1 Q. B. 404.]

This was an action upon promises against the defendant, as agent, for work and labour, &c.

Plea—the general issue.

The cause was tried at the sittings after last Hilary term before Buller, Justice, when a verdict was found for the defendant by the direction of the Judge.

Upon a motion for a new trial by Cowper, the following facts appeared from the report;

In the year 1779 the defendant, being Governor of Quebec, appointed Captain Sinclair to the command of a fort called Michilimakinac, situated upon the Lake Huron, in the province of Canada.

On the 17th August 1779, the defendant transmitted certain instructions to Sinclair respecting the government of the fort, in which he said,

“You are to pay great attention to the Indians resorting to Michilimakinac, or furnished with necessaries from thence. Endeavour to preserve them in good humour; and attach them by every means in your power to the King’s interest.”

In a further part of the same instructions, he added,

“You will draw bills of exchange for defraying the contingencies incident to that post in the manner practised by Major De Peyster, (an officer on whom that command had been before conferred,) taking care to moderate and reduce those expenses, as far as can be done without injuring the King’s service.”

For some time Sinclair employed one Grant to distribute presents among the Indians, and to procure military stores, &c. for the use of the garrison; and, to defray these and other expenses, drew bills of exchange upon the governor, according to his instructions. When these accounts came to the defendant, he made objections to several of the articles as unnecessary and exorbitant; and soon after recommended the plaintiff to Sinclair by a letter dated the 16th May 1782, of which the following is an extract;

“Upon an examination of the accounts accompanying your late draughts, for expenses incurred at Michilimakinac, the [173] articles are in general charged at prices exceeding all bounds of moderation.

“Upon the comparison of the prices made here, the advantage taken of the necessities of the Crown by the traders at Michilimakinac is shamefully obvious; and it is more so in the account of Mr. Grant, who appears to be an agent for Government, than in any other particular.

“Persuaded that you have supplied your wants from those traders in whom you have had the greatest reason to confide, I find there is but little to be expected from any of them residing at that post; which induced me to make inquiry if any person could be found here more worthy of the public confidence. A Mr. Macbeath, who will deliver this letter, and who has just made application for a pass, was mentioned to me as a man of known and established integrity; and, upon a more particular inquiry, I find that he has always, both here and in the upper country, merited that character. I have proposed to him to supply the Crown with such quantities of Indian corn and grease as may be wanted for the necessary purposes at that post:

(a) On the third trial a special verdict was found, containing the same facts, on which the Court gave judgment for the defendant; and that judgment was afterwards unanimously affirmed in the Exchequer Chamber. Post, 2 vol. 186.